

25CHCV03776 25CHCV03776

County: los-angeles

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MOTION TO COMPEL

ARBITRATION AND STAY PROCEEDINGS

Motion filed on May 26, 2026.

MOVING PARTY: American Credit Acceptance, LLC (Defendant)

RESPONDING PARTY: Deandra M. Marshall (Plaintiff)

NOTICE: OK.

RELIEF REQUESTED: Defendant seeks an order compelling Plaintiff to arbitrate her claims and staying this action pending arbitration.

RULING: Granted. The action is stayed pending completion of arbitration.

BACKGROUND

On October 23, 2025, Plaintiff Deandra M. Marshall (Plaintiff), in propria persona, filed the Complaint against Defendant American Credit Acceptance, LLC (Defendant), alleging causes of action for (1) violation

of Civil Code section 2983.2, (2) violation of Business and Professions Code sections 7507.9 and 7508.2, subdivision (d), (3) conversion/trespass to chattels, (4) declaratory relief, and (5) injunctive relief.

On March 13, 2026, Defendant filed a motion to compel arbitration. On May 18, 2026, the Court denied the motion without prejudice because the contract containing the arbitration provision was not attached and the supporting declaration did not comply with Code of Civil Procedure section 2015.5.

On May 26, 2026, Defendant filed the present Motion to Compel Arbitration, supported by the declaration of Courtney Griffin and the Retail Installment Sale Contract (RISC).

On August 3, 2026, the Court continued the hearing because Defendant had served the motion and supporting papers on self-represented Plaintiff by email without establishing Plaintiff's express consent to electronic service. The Court ordered Defendant to properly serve the motion and supporting papers no later than August 7, 2026 and file proof of service.

On August 5, 2026, Defendant filed a Notice of Continued Hearing Date stating that conformed copies of the Motion and Griffin declaration were attached. (Aug. 5, 2026 Notice of Continued Hearing Date, p. 1.) Defendant served the filing by mail on Plaintiff on August 5, 2026. (Id., Proof of Service.)

No timely opposition was filed.

DISCUSSION

The Federal Arbitration Act (FAA)

The Federal Arbitration Act (FAA) applies to a contract evidencing a transaction involving interstate commerce. (Wolls v. Superior Court (2005) 127 Cal.App.4th 197, 211.) The FAA also applies where the parties expressly agree that it governs their arbitration agreement. (Davis v. Shiekh Shoes, LLC (2022) 84 Cal.App.5th 956, 963.)

Here, the RISC expressly provides that "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration

Act (9 U.S.C. § 1 et seq.) and not by any state law concerning arbitration.” (Griffin Decl., Ex. 1, p. 7.) The transaction also involves interstate commerce. Defendant is a South Carolina limited liability company with its principal place of business in South Carolina. (Griffin Decl., ¶ 2.) Defendant financed Plaintiff’s vehicle purchase with funds from South Carolina, and Westcoast Auto Sales transferred the financing transaction paperwork to Defendant’s South Carolina offices. (Id., ¶ 6.) Plaintiff’s payments under the RISC were deposited into Defendant’s South Carolina bank account. (Id., ¶ 8.)

Accordingly, the FAA governs the arbitration agreement.

Existence of an Arbitration Agreement

A party seeking to compel arbitration bears the initial burden of proving the existence of an arbitration agreement. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) The moving party satisfies its initial burden by reciting the agreement verbatim or providing a copy of it. (*Ibid.*) If that burden is met, the burden shifts to the opposing party to identify a factual dispute concerning the agreement’s existence. (*Ibid.*)

Here, Defendant submitted the RISC with the Griffin declaration. Griffin states that Plaintiff entered into the RISC to finance her purchase of the 2020 Alfa Romeo Giulia. (Griffin Decl., ¶ 5.) Griffin further states that Westcoast Auto Sales thereafter assigned its rights, title, and interest in the RISC to Defendant. (Id., ¶ 6.)

The RISC contains an “Agreement to Arbitrate” providing that either party may elect to resolve a dispute by neutral, binding arbitration rather than a court action. (Griffin Decl., Ex. 1, p. 1.) Plaintiff signed the RISC. (Griffin Decl., ¶ 7.) Plaintiff also acknowledged that she had read all pages of the contract, including the arbitration provision. (Griffin Decl., Ex. 1, p. 6.)

Defendant has therefore met its initial burden to establish the existence of an arbitration agreement.

Scope

The arbitration provision applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise” between the parties

or their successors or assigns that “arises out of or relates to” the credit application, purchase or condition of the vehicle, the RISC, or any resulting transaction or relationship. (Griffin Decl., Ex. 1, p. 7.)

Here, Plaintiff’s claims arise from Defendant’s financing of the vehicle, its subsequent repossession, and the alleged conduct relating to that repossession. Plaintiff alleges statutory violations concerning the repossession and post-repossession notice, conversion/trespass to chattels, declaratory relief concerning the legality of the repossession, and injunctive relief concerning disposition of the vehicle. (Compl., p. 3.) These claims fall within the arbitration provision.

The arbitration provision further encompasses disputes concerning “the interpretation and scope of this Arbitration Provision, and the arbitrability of the claim or dispute.” (Griffin Decl., Ex. 1, p. 7.) Thus, the agreement clearly and unmistakably delegates issues of arbitrability and scope to the arbitrator. (Gostev v. Skillz Platform Inc. (2023) 88 Cal.App.5th 1035, 1048.)

Plaintiff filed no opposition. Plaintiff therefore identifies no factual dispute concerning formation of the arbitration agreement and raises no defense to its enforcement. The failure to oppose may be construed as an admission that the motion is meritorious. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, Defendant’s motion to compel arbitration is granted.

Stay

Defendant requests that the action be stayed pending arbitration. The FAA provides for a stay of proceedings involving issues referable to arbitration upon application of a party. (9 U.S.C. § 3.) Code of Civil Procedure section 1281.4 likewise requires a stay where the Court has ordered arbitration of a controversy involved in the pending action. Because all claims asserted in this action are subject to arbitration, the action is stayed in its entirety pending completion of arbitration.

CONCLUSION

Defendant American Credit Acceptance, LLC's Motion to Compel Arbitration is GRANTED.

Plaintiff Deandra M. Marshall and Defendant American Credit Acceptance, LLC are ordered to arbitrate Plaintiff's claims pursuant to the arbitration provision in the Retail Installment Sale Contract.

The action is STAYED pending completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)